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ORDINANCE NO. 218, 2025
OF THE COUNCIL OF THE CITY OF FORT COLLINS
AMENDING CHAPTER 5, ARTICLE IV OF THE CODE OF THE CITY OF FORT
COLLINS FOR THE PURPOSE OF REPEALING THE 2021 INTERNATIONAL FUEL
GAS CODE AND ADOPTING THE 2024 INTERNATIONAL FUEL GAS CODE, WITH
AMENDMENTS

A. Since 1924, the City has reviewed, amended and adopted the latest nationally recognized building standards available for the times.

B. Upon recommendation of City staff, the City Council has determined that it is in the best interests of the City to align eleven interconnected basic construction codes under one publication year.

C. The eleven interconnected basic construction codes are the *International Building Code*, *International Residential Code*, *International Mechanical Code*, *International Fuel Gas Code*, *International Energy Conservation Code*, *International Property Maintenance Code*, *International Swimming Pool and Spa Code*, *International Existing Building Code*, *International Plumbing Code*, *International Fire Code*, and the *International Wildland-Urban Interface Code* to the extent adopted by the *Colorado Wildfire Resiliency Code*.

D. The City Council has determined that the 2024 publication year of these interconnected basic construction codes should be adopted and that any counterpart *International* codes previously adopted should be repealed, both in order to align the publication years of the codes and because the 2024 publications contain improvements in construction code regulation.

E. City staff has conducted a significant public outreach program, working with the regulated construction industry and building professionals.

F. The adoption of the interconnected basic construction codes has been presented to community groups and feedback has been received by the Water Commission, Energy Board, Commission on Disability, Natural Resources Advisory Board, Poudre Fire Authority Board, Building Review Commission, Affordable Housing Board, and Air Quality Advisory Board.

G. The City Council has determined that it is in the best interest of the health, safety and welfare of the City and its residents that the *2024 International Fuel Gas Code* be adopted, with local amendments as set forth in this Ordinance.

H. Pursuant to the City Charter, Article II, Section 7, City Council may enact any ordinance which adopts a code by reference in whole or in part provided that before adoption of such ordinance the Council hold a public hearing thereon and that notice of the hearing shall be published twice in a newspaper of general circulation published in the City, with one of such publications occurring at least eight (8) days preceding the

hearing and the other publication occurring at least fifteen (15) days preceding the hearing.

I. In compliance with City Charter, Article II, Section 7, the City Clerk published in the Fort Collins *Coloradoan* such notice of hearing concerning adoption of the 2024 International Codes on November 16, 2025, and November 23, 2025.

J. Attached as Exhibit A and incorporated herein by reference is the Notice of Public Hearing dated November 16, 2025, that was so published and which the Council hereby finds meets the requirements of Article II, Section 7 of the City Charter.

In light of the foregoing recitals, which the Council hereby makes and adopts as determinations and findings, BE IT ORDAINED BY THE COUNCIL OF THE CITY OF FORT COLLINS as follows:

Section 1. The City Council hereby repeals the 2021 *International Fuel Gas Code* ("IFGC") and adopts the 2024 *International Fuel Gas Code* as amended by this Ordinance.

Section 2. Section 5-111 of the Code of the City of Fort Collins is hereby amended as follows:

Sec. 5-111. - Adoption of standards for fuel gas piping, equipment and accessories.

Pursuant to the power and authority conferred on the City Council by Colorado Revised Statutes Section C.R.S. §31-16-202 and Article II, Section 7 of the Charter, the City Council has adopted the 20212024 *International Fuel Gas Code*, published by the International Code Council, second printing (June 2024), which shall have the same force and effect as though set forth in full herein except as amended pursuant to §5-112 of the City Code. The subject matter of the 20212024 *International Fuel Gas Code* adopted herein includes comprehensive regulations governing the design, installation, maintenance, alteration and inspection of fuel gas piping systems, fuel gas utilization equipment and related accessories for the purposes of protecting public health, safety and general welfare. None of the 20212024 *International Fuel Gas Code* Appendices are hereby adopted.

Section 3. Section 5-112 of the Code of the City of Fort Collins is hereby repealed and re-enacted to read as follows:

Sec. 5-112. - Amendments and deletions to the 2024 International Fuel Gas Code.

The 2024 *International Fuel Gas Code* adopted in § 5-111 is amended as follows:

1. **Section 101.1 Title** is amended to read as follows:

101.1 Title. These regulations shall be known as the *Fuel Gas Code* of the City of Fort Collins, hereinafter referred to as “this code.”

2. **Section 102.8 Referenced codes and standards** is amended to read as follows:

Section 102.8 Referenced codes and standards. The codes and standards referenced in this code shall be those that are *listed* in Chapter 8 Section 101.4 of the adopted *International Building Code*, entitled “Referenced codes,” and such codes and standards shall be considered to be part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.8.1 and 102.8.2.

Exception: Where enforcement of a code provision would violate the conditions of the listing of the *equipment* or *appliance*, the conditions of the listing and the manufacturer's installation instructions shall apply.

3. **SECTION 103 (IFGC) CODE COMPLIANCE AGENCY** is deleted in its entirety and replaced with the following:

SECTION 103 (IFGC) CODE COMPLIANCE AGENCY

~~[A] 103.1 Creation of agency.~~ The [insert name of department] is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

~~[A] 103.2 Appointment.~~ The code official shall be appointed by the chief appointing authority of the jurisdiction.

~~[A] 103.3 Deputies.~~ In accordance with the prescribed procedures of this jurisdiction and with the concurrence of the appointing authority, the code official shall have the authority to appoint a deputy code official, other related technical officers, inspectors and other employees. Such employees shall have powers as delegated by the code official.

SECTION 103 CODE ADMINISTRATION

103.1 Entity charged with code administration. The entity charged with code administration shall be as determined in accordance with Section 103 of the adopted *International Building Code*, entitled “CODE ADMINISTRATION.”

4. **Section 104.2.4.1 Flood hazard areas** is deleted in its entirety and replaced with the following:

~~[A] 104.2.4.1 Flood hazard areas.~~ The code official shall not grant modifications to any provision required in flood hazard areas as established

by Section 1612.3 of the International Building Code unless a determination has been made that:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration or topography of the site render the elevation standards of Section 1612 of the International Building Code inappropriate.
2. A determination that failure to grant the variance would result in exceptional hardship by rendering the lot undevelopable.
3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety or extraordinary public expense; cause fraud on or victimization of the public; or conflict with existing laws or ordinances.
4. A determination that the variance is the minimum necessary to afford relief, considering the flood hazard.
5. Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

104.2.4.1 Flood hazard areas. For *existing buildings or structures* regulated under the scope of this code that are in whole or in part located in *flood hazard areas*, construction documents shall be submitted as established in accordance with Chapter 10 of the City Code, entitled "Flood Prevention and Protection."

5. **Section 105.1.1 Annual permit and Section 105.1.2 Annual permit records** are deleted in their entirety.

[A] 105.1.1 Annual permit. Instead of an individual construction permit for each *alteration* to an already *approved* system or *equipment* installation, the *code official* is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit.

[A] 105.1.2 Annual permit records. The person to whom an annual permit is issued shall keep a detailed record of *alterations* made under such annual permit. The *code official* shall have access to such records at all times or such records shall be filed with the *code official* as designated.

6. **SECTION 108 (IFGC) FEES** is deleted in its entirety and replaced with the following:

~~SECTION 108 (IFGC) FEES~~

~~**[A] 108.1 Payment of fees.** A permit shall not be valid until the fees prescribed by law have been paid. An amendment to a permit shall not be released until the additional fee, if any, has been paid.~~

~~**[A] 108.2 Schedule of permit fees.** Where work requires a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by the applicable governing authority.~~

~~**[A] 108.3 Permit valuations.** The applicant for a permit shall provide an estimated value of the work for which the permit is being issued at time of application. Such estimated valuations shall include total value of work, including materials and labor, for which the permit is being issued, such as plumbing equipment and permanent systems. Where, in the opinion of the *code official*, the valuation is underestimated, the permit shall be denied unless the applicant can show detailed estimates acceptable to the *code official*. The *code official* shall have the authority to adjust the final valuation for permit fees.~~

~~**[A] 108.4 Work commencing before permit issuance.** Any person who commences any work on a mechanical system before obtaining the necessary permits shall be subject to a fee established by the *code official* that shall be in addition to the required permit fees.~~

~~**[A] 108.5 Related fees.** The payment of the fee for the construction, *alteration*, removal or demolition for work done in connection to or concurrently with the work authorized by a permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.~~

~~**[A] 108.6 Refunds.** The *code official* is authorized to establish a refund policy.~~

SECTION 108 FEES

108.1 Fees. All items relating to fees shall be as specified in Section 109 of the adopted *International Building Code*, entitled "FEES."

108.2 Work commencing before permit issuance. All items related to work commencing before permit issuance shall be made pursuant to the applicable provisions of Section 109.2 of the adopted *International Building Code*.

7. **SECTION 112 (IFGC) MEANS OF APPEAL** is deleted in its entirety and replaced with the following:

~~[A] SECTION 112 (IFGC) MEANS OF APPEALS~~

~~[A] 112.1 General.~~ ~~In order to hear and decide appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, there shall be and is hereby created a board of appeals. The board of appeals shall be appointed by the applicable governing authority and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the code official.~~

~~[A] 112.2 Limitations on authority.~~ ~~An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply or an equivalent or better form of construction is proposed. The board shall not have authority to waive requirements of this code.~~

~~[A] 112.3 Qualifications.~~ ~~The board of appeals shall consist of members who are qualified by experience and training on matters pertaining to the provisions of this code and are not employees of the jurisdiction.~~

~~[A] 112.4 Administration.~~ ~~The code official shall take action without delay in accordance with the decision of the board.~~

SECTION 112 MEANS OF APPEAL.

112.1 General. Appeals of decisions, determinations and interpretations of this code shall be done in accordance with the applicable provisions and procedures of Section 113 of the adopted *International Building Code*, entitled "MEANS OF APPEALS."

8. **Section 113.4 Violation penalties** is deleted in its entirety and replaced with the following:

~~[A] 113.4 Violation penalties.~~ ~~Persons who shall violate a provision of this code, fail to comply with any of the requirements thereof or erect, install, alter or repair work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be guilty of a [SPECIFY OFFENSE], punishable by a fine of not more than [AMOUNT] dollars or by imprisonment not exceeding [NUMBER OF DAYS], or both such fine and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense.~~

113.4 Violation penalties. Any person who violates a provision of this code or fails to comply with any of the requirements thereof or who alters or repairs a building or structure in violation of the *approved construction documents* or directive of the *code official*, or of a permit or certificate issued under the provisions

of this code, commits a civil infraction and is subject to the provisions contained in § 1-15(f) of the City Code. Each day that a violation continues shall be deemed a separate offense.

9. **Section 301.3 Listed and labeled** is amended to read as follows:

301.3 Listed and labeled. *Appliances* regulated by this code shall be *listed* and *labeled* for the application in which they are used unless otherwise *approved* in accordance with Section 105. ~~The approval of unlisted appliances in accordance with Section 105 shall be based on approved engineering evaluation.~~

10. **Section 303.3 Prohibited locations** is amended to read as follows:

303.3 Prohibited locations. *Appliances* shall not be located in sleeping rooms, bathrooms, toilet rooms, storage closets or surgical rooms, or in a space that opens only into such rooms or spaces, except where the installation complies with one of the following:

1. The *appliance* is a direct-vent *appliance* installed in accordance with the conditions of the listing and the manufacturer's instructions.
2. Vented room heaters, wall furnaces, vented decorative *appliances*, vented gas fireplaces, vented gas *fireplace* heaters and decorative *appliances* for installation in vented solid fuel-burning fireplaces are installed in rooms that meet the required volume criteria of Section 304.5.
3. ~~A single wall-mounted unvented room heater is installed in a bathroom and such unvented room heater is equipped as specified in Section 621.6 and has an input rating not greater than 6,000 Btu/h (1.76 kW). The bathroom shall meet the required volume criteria of Section 304.5.~~
4. ~~A single wall-mounted unvented room heater is installed in a bedroom and such unvented room heater is equipped as specified in Section 621.6 and has an input rating not greater than 10,000 Btu/h (2.93 kW). The bedroom shall meet the required volume criteria of Section 304.5.~~
53. The *appliance* is installed in a room or space that opens only into a bedroom or bathroom, and such room or space is used for no other purpose and is provided with a solid weather-stripped door equipped with an *approved* self-closing device. *Combustion air* shall be taken directly from the outdoors in accordance with Section 304.6.
64. A clothes dryer is installed in a residential bathroom or toilet room having a permanent opening with an area of not less than 100 square inches (0.06 m²) that communicates with a space outside of a sleeping room, bathroom, toilet room or storage closet.

11. **Section 304.11 Combustion air ducts** is amended to read as follows:

304.11 Combustion air ducts. *Combustion air* ducts shall comply with all of the following:

1. Ducts shall be constructed of galvanized steel complying with Chapter 6 of the *International Mechanical Code* or of a material having equivalent corrosion resistance, strength and rigidity.

Exception: Where the installation of galvanized steel ducts is not practical due to existing finish materials within dwellings units, that are undergoing *alteration* or reconstruction, unobstructed stud and joist spaces shall not be prohibited from conveying *combustion air*, provided that not more than one required fireblock is removed.

...

9. All *combustion air* openings or ducts shall be readily identifiable with an *approved* label or by other means warning persons that obstruction of such openings or ducts may cause fuel-burning *equipment* to release *combustion products* and dangerous levels of carbon monoxide into the building.

12. **Section 305.1 General** is amended to read as follows:

305.1 General. *Equipment* and *appliances* shall be installed as required by the terms of their approval, in accordance with the conditions of listing, the manufacturer's instructions and this code. Manufacturers' installation instructions shall be available on the job site at the time of inspection. Where a code provision is less restrictive than the conditions of the listing of the *equipment* or *appliance* or the manufacturer's installation instructions, the conditions of the listing and the manufacturer's installation instructions shall apply.

~~Unlisted *appliances* approved in accordance with Section 301.3 shall be limited to uses recommended by the manufacturer and shall be installed in accordance with the manufacturer's instructions, the provisions of this code and the requirements determined by the code official.~~

13. **Section 404.12 Minimum burial depth** is amended to read as follows:

404.12 Minimum burial depth. Underground *pipng* systems shall be installed a minimum depth of 12 **18** inches (305 **457** mm) below grade ~~except as provided for in Section 404.12.1.~~

14. **Section 404.12.1 Individual outdoor appliances** is deleted in its entirety.

~~**404.12.1 Individual outdoor appliances.** Individual lines to outdoor lights, grills and other *appliances* shall be installed not less than 8 inches (203 mm) below finished grade, provided that such installation is *approved* and is installed in locations not susceptible to physical damage.~~

15. **Section 406.4.1 Test pressure** is deleted in its entirety and replaced with the following:

~~**406.4.1 Test pressure.** The test pressure to be used shall be not less than 1½ times the proposed maximum working pressure, but not less than 3 psig (20 kPa gauge). Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe.~~

406.4.1 Test pressure. The test pressure to be used for non-welded pipe shall not be less than 10 psi.

16. **Section 501.8 Appliances not required to be vented** is amended to read as follows:

501.8 Appliances not required to be vented. The following *appliances* shall not be required to be vented:

1. **Electrical** Ranges.
2. Built-in domestic cooking units *listed* and marked for optional venting.
3. Hot plates and laundry stoves.
4. Type 1 clothes dryers (Type 1 clothes dryers shall be exhausted in accordance with the requirements of Section 614).
5. A single booster-type automatic instantaneous water heater, where designed and used solely for the sanitizing rinse requirements of a dishwashing machine, provided that the heater is installed in a commercial kitchen having a mechanical exhaust system. Where installed in this manner, the draft hood, if required, shall be in place and unaltered and the draft hood *outlet* shall be not less than 36 inches (914 mm) vertically and 6 inches (152 mm) horizontally from any surface other than the heater.
6. Refrigerators.
7. Counter appliances.
8. ~~Room heaters *listed* for unvented use.~~
9. Direct-fired makeup air heaters.
10. ~~Other *appliances listed* for unvented use and not provided with flue collars.~~
11. Specialized *appliances* of limited input such as laboratory burners and gas lights.

Where the *appliances* listed in Items 5 through 11 are installed so that the aggregate input rating exceeds 20 British thermal units (Btu) per hour per cubic foot (207 watts per m³) of volume of the room or space in which such *appliances* are installed, one or more shall be provided with venting systems or other *approved* means for conveying the vent gases to the outdoor atmosphere so that the aggregate input rating of the remaining unvented *appliances* does not exceed 20 Btu per hour per cubic foot (207 watts per m³). Where the room or space in which the *appliance* is installed is directly connected to another room or space by a doorway, archway or other opening of comparable size that cannot be closed, the volume of such adjacent room or space shall be permitted to be included in the calculations.

17. **Section 503.6.6 Minimum height** is amended to read as follows:

503.6.6 Minimum height. A Type B or L gas vent shall terminate not less than 5 feet (1524 mm) in vertical height above the highest connected *appliance* draft hood or flue collar. A Type B-W gas vent shall terminate not less than 12 feet (3658 mm) in vertical height above the bottom of the wall furnace. **All gas vents shall terminate a minimum of 22 inches (559 mm) above the surface or grade directly below.**

18. **Section 621 (IFGC) UNVENTED ROOM HEATERS** is deleted in its entirety.

~~SECTION 621 (IFGC) UNVENTED ROOM HEATERS~~

~~621.1 General.~~ ~~Unvented room heaters shall be listed in accordance with ANSI Z21.11.2 and shall be installed in accordance with the conditions of the listing and the manufacturer's instructions. Unvented room heaters utilizing fuels other than fuel gas shall be regulated by the *International Mechanical Code*.~~

~~621.2 Prohibited use.~~ ~~One or more unvented room heaters shall not be used as the sole source of comfort heating in a *dwelling unit*.~~

~~621.3 Input rating.~~ ~~Unvented room heaters shall not have an input rating in excess of 40,000 Btu/h (11.7 kW).~~

~~621.4 Prohibited locations.~~ ~~Unvented room heaters shall not be installed within *occupancies* in Groups A, E and I. The location of unvented room heaters shall comply with Section 303.3.~~

~~621.5 Room or space volume.~~ ~~The aggregate input rating of all unvented *appliances* installed in a room or space shall not exceed 20 Btu/h per cubic foot (207 W/m³) of volume of such room or space. Where the room or space in which the *appliances* are installed is directly connected to another room or space by a doorway, archway or other opening of comparable size that cannot be closed, the volume of such adjacent room or space shall be permitted to be included in the calculations.~~

~~621.6 Oxygen-depletion safety system.~~ ~~Unvented room heaters shall be equipped with an oxygen-depletion-sensitive safety shutoff system. The system shall shut off the gas supply to the main and pilot burners when the oxygen in the surrounding atmosphere is depleted to the percent concentration specified by the manufacturer, but not lower than 18 percent. The system shall not incorporate field adjustment means capable of changing the set point at which the system acts to shut off the gas supply to the room heater.~~

~~621.7 Unvented decorative room heaters.~~ ~~An unvented decorative room heater~~

~~shall not be installed in a factory-built fireplace unless the fireplace system has been specifically tested, listed and labeled for such use in accordance with UL 127.~~

~~**621.7.1 Ventless firebox enclosures.** Ventless firebox enclosures used with unvented decorative room heaters shall be listed as complying with ANSI Z21.91.~~

19. A new **Section 623.3.1 Kitchens with gas cooking** is added to read as follows:

623.3.1 Kitchens with gas cooking. Gas cooking *appliances* in residential kitchens shall be supplied with an exhaust system vented to the outside. Ducts serving kitchen exhaust systems shall not terminate in an attic or *crawl space* or areas inside the building and shall not induce or create a negative pressure in excess of negative 3 Pa or adversely affect gravity-vented *appliances*.

20. **Section 630.3 (IFGS) Combustion and ventilation air** is amended to read as follows:

630.3 (IFGS) Combustion and ventilation air. Where ~~unvented~~ infrared heaters are installed, natural or mechanical means shall provide outdoor ventilation air at a rate of not less than 4 cfm per 1,000 Btu/h (0.38 m³/min/kW) of the aggregate input rating of all such heaters installed in the space. Exhaust openings for removing flue products shall be above the level of the heaters.

Section 4. The codifier of the Code of the City of Fort Collins is hereby directed to amend all existing cross references in the City Code and the Land Use Code in accordance with the provisions of this ordinance.

Section 5. The City Attorney and the City Clerk are hereby authorized to modify the formatting and to make such other amendments to this Ordinance as necessary to facilitate publication in the Fort Collins City Code; provided, however, that such modifications and amendments shall not change the substance of the Code provisions.

Introduced, considered favorably on first reading on December 2, 2025, and approved on second reading for final passage on December 16, 2025.

Mayor

ATTEST:

City Clerk

Effective Date: December 26, 2025

Approving Attorney: Madelene Shehan

Exhibit: Exhibit A – Notice of Publication